Notification Waiver Determination

Uber – Delivery Hero

Acquisition	Uber Technologies, Inc., through its indirect wholly-owned subsidiary Uber International Technologies II (together, **Uber**), applied for a notification waiver in respect of its proposed acquisition of the majority of, and up to 100% of, the share capital of Delivery Hero SE (**Delivery Hero**), as described in the transaction documents provided as part of the application (the **Acquisition**). The Acquisition will take place by way of a voluntary public takeover offer for the acquisition of all shares not directly held by Uber in cash with a minimum acceptance threshold of 50% plus one share. Uber currently owns between 20-25% of the share capital in Delivery Hero.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(b) of the *Competition and Consumer Act 2010* (Cth) not to make the notification waiver determination applied for.
Date of determination	22 October 2026

Parties to the Acquisition	The acquirer, Uber, is a Delaware corporation listed on the New York Stock Exchange. Uber was founded in 2009 and operates a technology platform for ride-hailing, food and other consumer goods delivery, and freight logistics services, operating in over 70 countries including Australia. Uber's consumer-facing brands and services include Uber Eats (ordering and delivery of food and other consumer goods), as well as Uber (ride-hailing), and Uber Freight (logistics) (mainly in the US). The target, Delivery Hero, is a European multinational incorporated in Germany, mainly operating an online delivery and ordering platform for food and other consumer goods across Europe, the Middle East, Africa, Asia, and the Americas under various brand names. Delivery Hero does not currently operate an Australian delivery and ordering platform or provide any delivery or ordering services in Australia. After having originally entered the Australian market in 2011, Delivery Hero consolidated its local operations under its subsidiary brand Foodora in 2016 and exited the Australian market in August 2018. Currently, Delivery Hero provides digital restaurant management services in Australia via its wholly-owned subsidiary, Tabsquare, comprising digital ordering via QR codes and kiosks, point of sale integration, and analytics and reporting services.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (**ACCC**) has considered the information provided with the notification waiver application, and had regard to the factors in section 51ABV(2)(b) of the Act. Based on the information provided in the application, including the parties' (and their connected entities) revenues in Australia, the

	ACCC considers it is likely that, if the Acquisition were put into effect, the notification thresholds would be met. The ACCC is unable to reach a view that the Acquisition would not be likely to raise competition issues in any market based on the information provided, given: a. Uber is a substantial provider of online delivery and ordering services of food and other consumer goods in Australia, and there is insufficient information to determine that the Acquisition would not be likely to raise material vertical or conglomerate competition issues b. the scope of the relevant markets is unclear and the extent to which the merged entity is likely to be constrained by alternative suppliers is uncertain. The ACCC considers that these potential competition issues warrant consideration through the notification process, including via consultation with third parties. Given the above, the ACCC has determined not to make the notification waiver determination applied for. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.

Determination made by a division of the Commission constituted by a direction issued pursuant to section 19 of the Act